

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: July 9, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

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Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Brown vs. Chapman University 2025-01517766	Demurrer to Amended Complaint The court notes that the Second Amended Complaint (SAC) has NOT been filed. The SAC was attached as exhibit 2 to a Notice (ROA #35.) The document itself does not appear as the operative pleading in the court's file. The court orders Plaintiff Shanna Brown to file the SAC with the clerks office forthwith so it appears as the operative complaint. With that said, the court will rule on the demurrer to the SAC. Defendants Chapman University, Carol Jue, Terry Boesel, Jennifer Lieu, and Glen Wakabayashi's demurrer to the 1st through 5th causes of action of the SAC is sustained in part and overruled in part as follows: The demurrer is SUSTAINED as to the first cause of action for intentional infliction of emotional distress. Brown hasn't alleged sufficient facts showing the acts were sufficiently outrageous to support the claim. The demurrer is OVERRULED as to the 2nd cause of action for discrimination. In the context of alleged racial discrimination, the dispositive question under the Unruh Act is whether the plaintiff faced unequal treatment on account of his or her race that members of other races did not experience. (<i>Smith v. BP Lubricants USA Inc.</i> (2021) 64 Cal.App.5th 138.) While coaches have broad discretion to decide who plays, how much they play, and whether they stay on the team from year to year, they may not make coaching decisions for racially discriminatory reasons. (<i>Mackey v. Board of Trustees of California State University</i> (2019) 31 Cal.App.5th 640.) This principle directly supports the viability of Brown's allegations. Brown's removal from the team, combined with the coach's alleged favoritism toward Asian players, denial of equal coaching access, and exclusion from team meetings and gatherings, goes beyond ordinary coaching discretion and raises a plausible inference of racially discriminatory motivation. The demurrer is OVERRULED as to the third cause of action for negligent supervision. Brown has alleged facts demonstrating that the university or athletic department knew or should have known about the coach's discriminatory conduct. She has alleged that the university failed to take reasonable steps to supervise the coach's conduct, investigate complaints, or implement policies to prevent discrimination. As such, the claim is properly stated

		The demurrer is OVERRULED as to the fourth cause of action for assault and battery. The allegation that Brown feared further harmful or offensive contact as a result of the coach’s repeated and aggressive conduct directly supports the apprehension element of civil assault. An offensive touching, although it inflicts no bodily harm, may nonetheless constitute a battery, and the same conduct may give rise to an assault insofar as it creates apprehension of such a battery. (<i>People v. Myers</i> (1998) 61 Cal.App.4th 328.) The intent required for battery is not an intent to cause harm, but an intent to do the act which causes the harm. (<i>Mesecher v. County of San Diego</i> (1992) 9 Cal.App.4th 1644.) The allegation that the coach intentionally and repeatedly grabbed and pulled Brown’s jersey in a forceful and aggressive manner satisfies this intent requirement, as the conduct was deliberate rather than accidental. The demurrer is SUSTAINED as to the fifth cause of action for harassment. This cause of action is duplicative of the discrimination cause of action. Brown brings this claim under the Unruh Civil Rights Act (Second Amended Complaint, paragraph 67.) Under the Unruh Civil Rights Act, there is no formal distinction between “discrimination” and “harassment” claims—both are treated as forms of intentional discrimination. (<i>Smith v. BP Lubricants USA Inc.</i>, <i>supra</i>, 64 Cal.App.5th at p. 151.) The demurrer is OVERRULED as to defendants Boesel, Lieu, and Wakabayashi. Brown has alleged agency, etc. and conspiracy between the individual defendants and Chapman. Plaintiff Brown is granted ten days leave to amend. To be clear, Plaintiff Brown is to file the SAC forthwith. If Plaintiff chooses to file a Third Amended Complaint in light of the court’s ruling on today’s demurrer, Plaintiff may do so within ten days. Defendant Chapman University to give notice.
2	DURKIN vs. MONROE 2026-01556307	Motion to Strike Defendant Angela T. Monroe aka Angela Marie Monroe’s motion to strike portions of complaint is DENIED.

The motion is procedurally defective. The complaint contains multiple allegations relating to punitive damages (see, e.g., Compl. ¶¶ 11g, 14a(2), GN-1(5) [alleging defendant’s conduct was “deliberate and egregious,” and “done willfully, maliciously, and/or with [conscious] disregard for the safety of ...[p]laintiff...”], IT-1(5)), and defendant has failed to comply with California Rules of Court, rule 3.1322(a). Specifically, the notice of motion seeks an order “strick[ing] portions of ... [the] [c]omplaint as follows: [¶] 1. Punitive Damages” (Ntc. of Mtn., p. 2)—but this does not identify any paragraph, cause of action, or count in the complaint, and does not quote in full any portion of the pleading sought to be stricken (Cal. Rules of Court, rule 3.1322(a)), and it is not the court’s role to exercise its own judgment in determining exactly what portions of the complaint are at issue. (See, e.g., *City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1099 [it is not the court’s role to develop a party’s argument for it, and “therefore need not consider undeveloped challenges”].)

The motion also fails on the merits. First, it attempts to rely on a “police event report” that defendant has loosely attached to the moving papers as exhibit A, which defendant contends shows she did not flee the scene. (See Mtn. P&As at p. 3:5-10.) Extrinsic evidence, however, is improper on a motion to strike. (Code Civ. Proc., § 437, subd. (a).) Further, defendant has not requested judicial notice of the police report and judicial notice of a police report is improper in any event. (See *People v. Jones* (1997) 15 Cal.4th 119, 171, fn. 17 [“we decline to take judicial notice of the truth or accuracy of an entry in a police report, because such a report is reasonably subject to dispute”] disapproved on another ground in *People v. Hill* (1998) 17 Cal.4th 800, 823, fn. 1; *In re Marriage of Brewster & Clevenger* (2020) 45 Cal.App.5th 481, 498 [a police report “is not subject to either mandatory or discretionary judicial notice under Evidence Code sections 451 or 452”].) And even if the court could consider the police report, it specifically labels the incident as a “hit and run” and notes that after crashing into plaintiff’s vehicle, defendant “cont[inue]d on” and left the scene. (Mtn. at Ex. A.)

Further, the complaint alleges sufficient facts in support of “malice” for purposes of punitive damages. (See Civ. Code, § 3294, subds. (a), (c)(1) [malice]; *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211, 1213, fn. 14 [malice based on unintentional conduct, elements]; *College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 724-725 [despicable conduct]; *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287 [despicable conduct “has been described as ‘[having] the

		character of outrage frequently associated with crime”]; Veh. Code, § 20001, subds. (a)-(b) [felony offense for a driver involved in an injury accident to fail to provide the information and assistance required by Veh. Code, §§ 20003-20004]; see also Compl. ¶¶ MV-1, GN-1(2)-(3), IT-1(3), IT-1(5), EX-2(2)-(3).) Defendant shall give notice.
3	FCI Lender Services, Inc. vs. Tenenbaum 2026-01557568	Demurrer to Complaint <i>Vacated. See minute order dated 6/26/26.</i>
4	Jerisat vs. Young 2025-01476022	Motion for Order to Prohibit Plaintiff from Appearing in Pro Per Defendant Steven Young’s Motion to Prohibit Plaintiff Martin Jerisat from Appearing in Pro Per at Court Proceedings is DENIED. As an initial matter, the notice of motion does not provide 16 court days (plus two court days for manner of service) of notice of the hearing. Even if this procedural defect is set aside, the Motion is moot, as Plaintiff Martin Jerisat has filed an association of counsel, which absolves all of the purported concerns Defendant Young lists as a basis for this motion. Plaintiff shall provide notice.
5	JIMENEZ vs. CLEARPATH MEDICAL, LLC 2026-01556323	Demurrer to Complaint Defendant ClearPath Medical, LLC’s Demurrer to the Complaint is SUSTAINED. The demurrer has not been opposed by Plaintiff Karina Fernandez Jimenez. Plaintiff’s failure to oppose the demurrer may be treated as an implied concession to the merits of the same. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) Based upon these grounds, and the reasons stated below, the court SUSTAINS the unopposed demurrer. <i>First Cause of Action – Pregnancy Discrimination</i>

		The Federal Employment and Housing Act (FEHA) makes it an unlawful employment practice to discharge a person from employment or discriminate against the person in the terms, conditions, or privileges of employment, based on “race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation.” (Gov. Code § 12940(a).) To establish a prima facie case of discrimination, a plaintiff “must generally provide evidence that: (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (<i>Dinslage v. City and County of San Francisco</i> (2016) 5 Cal.App.5th 368, 378.) ClearPath argues that Plaintiff cannot state a claim for discrimination because the Complaint fails to allege that it was Plaintiff’s employer. Although the Complaint alleges that ClearPath and the staffing agencies were “joint employers,” such conclusions are contradicted by the allegations in the Complaint. Plaintiff alleges that Lyneer was responsible for recruitment, hiring, and paying the assigned individuals, including making the appropriate payroll deductions and employer mandated payments. (Complaint, ¶ 13.) Lyneer also received all perspective employment applications and determined if the applicants were suitable for referral to ClearPath. (Complaint, ¶ 16.) Additionally, Lyneer and not ClearPath terminated Plaintiff’s employment. (Complaint, ¶ 36.) Therefore, ClearPath did not take any adverse employment action against Plaintiff. Accordingly, Plaintiff has not stated a claim for pregnancy discrimination, and the demurrer to the first cause of action is SUSTAINED. <i>Second Cause of Action – Failure to Accommodate</i> To prove her claim of failure to accommodate, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability; (3) Defendant knew of the disability; (4) Plaintiff could perform the essential duties of his position with a reasonable accommodation; (5) Defendant failed to provide reasonable accommodation; and (6) resulting harm. (CACI 2541.)
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		Again, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff's employer. Additionally, the Complaint alleges that following notification of her pregnancy, ClearPath moved Plaintiff to another work area in attempt to avoid having her work with cables, which was one of her work restrictions. (Complaint, ¶¶ 25-27.) However, even now and then she was asked to burn cables or to be around the area where cables were being burned. (Complaint, ¶ 29.) The Complaint, however, does not allege how occasionally burning cables caused her harm. Accordingly, Plaintiff has not stated a cause of action for failure to accommodate, and the demurrer to the second cause of action is SUSTAINED. <i>Third Cause of Action – Failure to Engage in the Interactive Process</i> To establish her claim that Defendant failed to engage in the interactive process, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability known to Defendant; (3) he requested a reasonable accommodation so that he could perform the essential job requirements; (4) she was willing to participate in the interactive process; (5) Defendant failed to engage in the interactive process; and (6) resulting harm. (CACI No. 2546.) If the interactive process fails, liability "for the failure rests with the party who failed to participate in good faith." (<i>Gelfo v. Lockheed Martin Corp.</i> (2006) 140 Cal.App.4th 34 54.) Again, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff's employer, and that ClearPath moved Plaintiff to another work area in response to her work restrictions. Accordingly, Plaintiff has not stated a cause of action for failure to engage in the interactive process, and the demurrer to the third cause of action is SUSTAINED. <i>Fourth Cause of Action – Retaliation</i> "To establish a prima facie case of retaliation, the plaintiff must show (1) he or she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) there exists a causal link between the protected
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	activity and the employer's action.” (<i>Yanowitz v. L’Oreal USA, Inc.</i> (2005) 36 Cal.4th 1028, 1042.) As stated above, Defendant argues the Complaint does not allege that ClearPath was Plaintiff’s employer. Moreover, Plaintiff was terminated by Lyneer, therefore, no adverse employment action was taken by ClearPath. Accordingly, Plaintiff has not stated a cause of action for retaliation, and the demurrer to the fourth cause of action is SUSTAINED. <i>Fifth Cause of Action – Retaliation in Violation of the California Family Rights Act (CFRA)</i> For the same reasons as set forth in the fourth cause of action, the demurrer to the fifth cause of action is SUSTAINED. <i>Sixth Cause of Action – Wrongful Termination in Violation of Public Policy</i> As stated above, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff’s employer nor did it terminate Plaintiff’s employment. Accordingly, Plaintiff has not stated a cause of action for wrongful termination, and the demurrer to the sixth cause of action is SUSTAINED. <i>Seventh Cause of Action – Failure to Prevent Discrimination</i> To establish a claim for failure to prevent discrimination, the Plaintiff must first establish she was an employee of Clearpath. (CACI 2527.) As stated above, Defendant argues that the Complaint does not allege that ClearPath was Plaintiff’s employer. Accordingly, Plaintiff has not stated a cause of action for failure to prevent discrimination, and the demurrer to the seventh cause of action is SUSTAINED. <i>Eighth Cause of Action – Intentional Infliction of Emotional Distress (IIED)</i>
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		Defendant argues that Plaintiff has not identified an “act” attributed to ClearPath. There are no allegations as to how ClearPath discriminated, retaliated, failed to accommodate or engage in the interactive process with Plaintiff. Lyneer, and not ClearPath, terminated Plaintiff’s employment. Thus, the Complaint fails to allege a basis for the IIED claim. Accordingly, the demurrer to the eighth cause of action is SUSTAINED. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by Defendant in the demurrer. Plaintiff has 15 days leave to amend. Defendant ClearPath shall give notice.
6	Kwak vs. Mistry 2023-01307909	Motion to Set Aside/Vacate Dismissal Plaintiff William H. Kwak’s motion for order setting aside the dismissal entered on August 4, 2025 and restoring this action to the active civil docket is <i>conditionally</i> GRANTED. The court does consider the fact that plaintiff’s counsel filed an opposition to defendants’ motion to dismiss (ROA 124) and argued the motion to dismiss on 6/26/25 (ROA 132), therefore plaintiff’s argument there was “mistake, inadvertence, surprise, or neglect” under Code of Civil Procedure section 473, subdivision (b) is not compelling. But courts apply section 473 liberally in favor of relief if the opposing party will not suffer prejudice. (<i>Minick v. City of Petaluma</i> (2016) 3 Cal.App.5th 15 [reflecting the policy preference for resolving cases on their merits rather than on procedural defaults].) The dismissal shall be set aside upon payment of defendants’ reasonable attorney fees in the amount of \$4,000.00. The court has considered the time and expense incurred by defendants’ counsel which includes: preparing the motion to dismiss and reply brief; two court appearances associated with the motion to dismiss on 6/26/25 and 7/18/25; the opposition to plaintiff’s motion to set aside; and today’s court appearance. The court has relied on its own experience and knowledge as to the extent and nature of the services required in bringing and opposing the motions and finds \$4,000 in attorney’s fees to be reasonable.

		Plaintiff William Kwak is ordered to pay \$4,000 to the defendants' counsel Gulino Law Office by 7/13/26. Plaintiff Kwak to give notice.
7	Morel vs. The Irvine Company LLC 2025-01524966	Motion to Compel Arbitration Defendants IAC at Jamboree LLC and Irvine Management Company's (IMC) motion to compel arbitration is GRANTED. (See 9 U.S.C. § 1 et seq. [FAA]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 (<i>Victrola</i>) [parties may incorporate the FAA]; <i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 582 [parties may incorporate the FAA's procedural provisions]; <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 [FAA burdens]; <i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 (<i>Pinnacle</i>) [applying FAA].) Plaintiffs Helene Morel (Morel) and Shea Franko (Franko) are ORDERED to arbitrate their claims against defendants in accordance with the subject arbitration agreement. (Matosic Decl. at Ex. A [lease at arbitration (arb.) addendum].) <u>Existence of arbitration agreement.</u> Defendants have met their first-step burden to demonstrate the existence of an agreement to arbitrate the controversy by producing a copy of the alleged arbitration agreement (reciting the terms verbatim) attached as an addendum to the subject lease. (See Matosic Decl. ¶ 5, Ex. A [lease, arb. addendum].) (See Matosic Decl. ¶ 5, Ex. A; <i>Arthur Andersen LLP v. Carlisle</i> (2009) 129 S.Ct. 1896, 1902-1903 [under FAA, state contract law governs the validity, revocability, and enforceability of an arbitration agreement, including the question of whether an arbitration agreement may be enforced by a nonparty]; see <i>Banner Entertainment, Inc. v. Superior Court</i> (1998) 62 Cal.App.4th 348, 357 [the FAA does not apply until the existence of an enforceable arbitration agreement is established under state law principles]; <i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51-52 [three-step burden shifting process].) IAC may enforce the arbitration agreement as a party to that agreement. (See Matosic Decl. at Ex. A.) As for IMC, it signed the agreement as IAC's property management company and "duly authorized agent" (see <i>id.</i> at Ex. A [lease, pp. 1 & 6; arb. addendum, pp. 1-2]), and has been sued based on its acts/omissions in that capacity. (See, e.g., Compl. ¶¶ 1.2, 3.1-3.8; see also ROA

No. 24 [4/6/26 amendment to complaint, correcting name of defendant “The Irvine Company LLC” to IMC].) As such it may invoke the arbitration agreement as IAC’s agent. (*Dryer v. Los Angeles Rams* (1985) 40 Cal.3d 406, 409-410; *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614-615.)

As for plaintiffs, Morel is bound by the arbitration agreement as a party to the agreement. As for Franko, there is no dispute that she Morel’s minor child. (See Compl. ¶ 1.5; see also ROA Nos. 46, 59 [guardian ad litem order].) In the arbitration agreement, Morel agreed that the agreement would “extend[] to and include[]” her “Occupants...” (Matosic Decl. at Ex. A [arb. addendum § 1, “This agreement to arbitration extends to and includes Resident, Resident’s Occupants...”].) And the lease expressly identifies Franko as one such “Occupant[.]” (*Id.* at Ex. A [lease ¶ 7].) While one must generally be a party to an arbitration agreement to be bound by it, there are a few circumstances in which a nonparty to an arbitration agreement can be bound by someone else’s consent. One such exception is where there is a parent-minor child relationship, such as the relationship between Morel and Franko, under the “well-grounded legal principle[]” that a parent can bind a minor child to an arbitration agreement. (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142-143; see *Pietrelli v. Peacock* (1993) 13 Cal.App.4th 943, 947 [“This authority is implied from the parent’s duties and rights as the child’s guardian.”]; see also *Lee v. Southern California University for Professional Studies* (2007) 148 Cal.App.4th 782, 786 [“limited circumstances exist under which a nonparty to an arbitration agreement can be bound by someone else’s consent,” for example, “agency, a spousal relationship or parent/minor child relationship”].) Franko is therefore also bound.

This shifts the burden to plaintiffs to present evidence of a factual dispute as to the existence of the arbitration agreement. (*Garcia, supra*, 102 Cal.App.5th at pp. 51-52.) Plaintiffs do not dispute the existence of the subject lease or arbitration agreement. In fact, plaintiffs admit that both exist (see Opp. at p. 3) and have not presented any evidence suggesting otherwise (indeed, they have not submitted any evidence at all). As such, the three-step burden shifting analysis stops here, and the court must find that defendants have met their burden to demonstrate the existence of an arbitration agreement. (*Ramirez, supra*, 102 Cal.App.5th at p. 837.)

Delegation clause. The arbitration agreement includes a clear and unmistakable delegation clause. (See *Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70, fn. 1 (*Rent-A-Center*) [a

	delegation to the arbitrator is enforceable so long as it is clear and unmistakable]; <i>Aanderud v. Superior Court</i> (2017) 13 Cal.App.5th 880, 892 [delegation clause prerequisites]; <i>Malone v. Superior Court</i> (2014) 226 Cal.App.4th 1551, 1559-1560 [delegation clause that provided “ ‘[t]he arbitrator has exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement’ ” was clear and unmistakable]; <i>Momot v. Mastro</i> (9th Cir. 2011) 652 F.3d 982, 988 [language delegating authority to arbitrator to determine “ ‘the validity or application of any of the provisions of’ ” the arbitration clause was a clear and unmistakable agreement to arbitrate the question of arbitrability]; see also Matosic Decl. at Ex. A [arb. addendum § 1.) As such, the court must delegate the arbitrability issue to the arbitrator, unless plaintiffs can establish a defense to enforcement that is specific to the delegation clause itself (as opposed to the arbitration agreement as a whole). (See <i>Malone, supra</i>, 226 Cal.App.4th at pp. 1559-1560 [challenges to the arbitration agreement as a whole are not sufficient to challenge the delegation clause itself; any such defense “must be specific to the delegation clause”]; <i>Rent-A-Center, supra</i>, 561 U.S. at pp. 71-73 [a party’s challenge to the arbitration agreement as a whole does not invalidate the delegation clause; while courts may consider enforceability challenges specific to delegation clauses, the arbitrator is to consider challenges to the arbitration agreement as a whole]; accord, <i>Nickson v. Shemran, Inc.</i> (2023) 90 Cal.App.5th 121, 132.) <u>Delegation clause – defense to enforcement per Civil Code, § 1953, subd. (a)(4).</u> Plaintiffs have raised two defenses specific to the delegation clause: (1) Civil Code section 1953, subdivision (a)(4); and (2) unconscionability. First, plaintiff contends that the delegation clause is “void” under California law, specifically, Civil Code section 1953, subdivision (a)(4) (section 1953(a)(4)), which provides that any provision in a residential lease “by which the lessee agrees to modify or waive” her “procedural rights in litigation in any action involving his rights and obligations as a tenant” shall be “void as contrary to public policy.” (Civ. Code, § 1953, subd. (a)(4).) Plaintiffs’ reliance on section 1953(a)(4) fails because the arbitration agreement is governed by the FAA, and the FAA preempts state laws that discriminate against arbitration such as section 1943(a)(4). (See Matosic Decl. at Ex. A [arb. addendum § 1]; <i>Chamber of Commerce of the United States of America v.</i>
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		<i>Bonta</i> (9th Cir. 2023) 62 F.4th 473, 483, 486 (<i>Chamber of Commerce</i>).) “[T]he FAA preempts a state rule that discriminates against arbitration by discouraging or prohibiting the formation of an arbitration agreement.” (<i>Chamber of Commerce of the United States of America v. Bonta</i> (9th Cir. 2023) 62 F.4th 473, 483, 486 (<i>Chamber of Commerce</i>).) “[A] state rule discriminates against arbitration even if it does not expressly refer to arbitration, but instead targets its defining characteristics.” (<i>Id.</i>, at p. 486.) This includes “a rule that prohibits an agreement ... that waives the right to a jury trial....” (<i>Id.</i> at p. 483.) Further, even if a state law is purportedly “generally applicable,” the FAA preempts the law if it “interferes with fundamental attributes of arbitration,” such as a categorical rule of unconscionability declaring a particular type of agreement against public policy. (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 331-334 (<i>Concepcion</i>); <i>Chamber of Commerce</i>, at p. 483.) Specifically, “the FAA preempts a state rule that discriminates against arbitration by discouraging or prohibiting the formation of an arbitration agreement.” (<i>Chamber of Commerce, supra</i>, 62 F.4th at p. 486.) “[A] state rule discriminates against arbitration even if it does not expressly refer to arbitration, but instead targets its defining characteristics.” (<i>Id.</i>, at p. 486.) This includes “a rule that prohibits an agreement ... that waives the right to a jury trial....” (<i>Id.</i> at p. 483.) Further, even if a state law is “generally applicable,” the FAA preempts the law if it “interferes with fundamental attributes of arbitration,” such as a categorical rule of unconscionability declaring a particular type of agreement against public policy. (<i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 331-334 (<i>Concepcion</i>); <i>Chamber of Commerce, supra</i>, 62 F.4th at p. 483.) This is precisely what we have here. Section 1953(a)(4) prohibits and renders “void” an agreement modifying or waiving a tenant’s procedural rights in litigation, including the right to a jury trial. (Civ. Code, § 1953, subd. (a)(4); <i>Jaramillo v. JH Real Estate Partners, Inc., supra</i>, 111 Cal.App.4th at p. 404 [“Inherent in an arbitration agreement is a waiver of any right to jury trial.”].) “Because a person who agrees to arbitrate disputes must necessarily waive the right to bring civil actions regarding those disputes in any other forum,” the statute “burdens the defining feature of arbitration agreements,” and is therefore preempted by the FAA. (<i>Chamber of Commerce, supra</i>, 62 F.4th at p. 487; see <i>id.</i> at pp. 483, 486; <i>Concepcion, supra</i>, 563 U.S. at pp. 331-334.)
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Therefore, section 1953(a)(4) does not render the delegation clause void.

Delegation clause – defense to enforcement on the ground of unconscionability. Plaintiffs also argue that the delegation clause itself is unconscionable. “The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*OTO*)). The doctrine of unconscionability has both a (1) procedural and (2) substantive element. (*OTO, supra*, 8 Cal.5th at p. 125.) “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power.” (*Pinnacle, supra*, 55 Cal.4th at p. 246.) “Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.” (*Ibid.*) Both procedural and substantive unconscionability must be present before an arbitration provision is rendered unenforceable on unconscionability grounds. (*Id.* at p. 247.)

Plaintiffs have failed to demonstrate that the delegation clause is procedurally unconscionable. While plaintiffs contend that the arbitration agreement, including the delegation clause, was “presented to residential tenants without meaningful negotiation, in a context of severe bargaining power disparity” (Opp. at p. 13), plaintiffs have not submitted any evidence establishing this. Nothing shows that they did not in fact have a meaningful opportunity to negotiate the terms of the delegation clause or that there was a “severe bargaining power disparity” between the parties at the time they entered into the agreement.

Further, even if plaintiffs had demonstrated procedural unconscionability (which they have not), plaintiffs have also failed to demonstrate substantive unconscionability. A delegation clause is treated as a separate agreement to arbitrate. (*Malone, supra*, 26 Cal.App.4th at p. 1559.) Thus, the question here is whether plaintiffs have shown the delegation clause itself is substantively unconscionable. (*Ibid.*) Plaintiffs have not pointed to any particular language of the delegation clause that renders it substantively unconscionable. Instead they complain that the delegation clause “remove[s] from judicial scrutiny the very question of whether the arbitration addendum is enforceable” by delegating that issue to the arbitrator. (Opp. at pp. 13-14.) But there is nothing

	substantively unconscionable about this. Parties may delegate questions of enforceability to an arbitrator, as was done here (<i>Rent-A-Center, supra</i>, 561 U.S. at p. 70, fn. 1; <i>Garcia, supra</i>, 102 Cal.App.5th at p. 50), and doing so does not tend to favor one side or the other. “Normally, we assume the arbitrator will act reasonably and in conformity with the law” (<i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 506), and nothing before the court suggests the arbitrator will not reasonably and/or fairly decide any issues of arbitrability. Plaintiffs have therefore failed to demonstrate that the delegation clause is unconscionable. (See <i>Pinnacle, supra</i>, 55 Cal.4th at p. 246 [both procedural and substantive unconscionability must be present before a provision is rendered unenforceable on unconscionability grounds].) As for plaintiffs’ remaining contentions directed at the arbitration agreement as a whole, they are not sufficient to challenge the delegation clause itself. (See <i>Malone v. Superior Court, supra</i>, 226 Cal.App.4th at pp. 1559-1560; <i>Tiri v. Lucky Chances, Inc., supra</i>, 226 Cal.App.4th at p. 244.) Accordingly, the delegation clause must be enforced, and the remaining arbitrability issues must be decided by the arbitrator. (<i>Henry Schein, supra</i>, 586 U.S. at p. 65 [“When the parties’ contract delegates the arbitrability question to an arbitrator, the courts must respect the parties’ decision as embodied in the contract.”].) Therefore, the court must delegate the remaining issues for the arbitrator to decide, including, inter alia, plaintiffs’ remaining challenges to the arbitration agreement as a whole. (<i>Henry Schein, Inc. v. Archer and White Sales, Inc.</i> (2019) 586 U.S. 63, 65, 69 [“When the parties’ contract delegates the arbitrability question to an arbitrator, the courts must respect the parties’ decision as embodied in the contract.”].) <u>Surreply.</u> On 7/2/26, long after the time to file any further opposition papers, plaintiffs filed a surreply (consisting of a brief in response to the reply), labeled as another “opposition.” No authority provides for the filing of a surreply absent leave of court. (See Code Civ. Proc., § 1005, subd. (b); see also <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765.) There is also no proof of service of the surreply. The court therefore declines to consider it.
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		This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.) <i>The Order to Show Cause re: Dismissal set September 18, 2026 at 8:30 a.m. is vacated.</i> <i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 26, 2027 at 8:30 a.m. in Department C44.</i> Defendants shall give notice.
8	Nationwide Insurance Company vs. Cal-Coast Packing & Crating, Inc. 2025-01501912	Motion for Determination of Good Faith Settlement Defendant Hutchinson Logistics & Consulting, LLC’s Motion for Determination of Good Faith Settlement is GRANTED. Defendant Hutchinson Logistics & Consulting LLC seeks an order finding the settlement between itself and Plaintiff Nationwide to be in good faith. California Civil Procedure Code § 877.6, subdivision (a)(1) provides that any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. California Civil Procedure Code § 877.6, subdivision (a)(2) states that a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order. A nonsettling party may file a notice of motion to contest the good faith of the settlement. (<i>Id.</i>) The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the notice of hearing and any counter affidavits filed in response. (Code Civ. Proc., § 877.6, subd. (b).) A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (Code Civ. Proc., § 877.6, subd. (c).) The purpose of the court’s review of a settlement for good faith is to determine whether the settlement prejudices the interests of nonsettling tortfeasors. (<i>Tech-Bilt, Inc. v. Woodward-Clyde &</i>

		<i>Assocs.</i> (1985) 38 Cal.3d 488, 494 n.4.) The court considers a number of factors in evaluating a settlement for good faith: • A “rough approximation” of the plaintiffs’ total recovery and the settlor’s proportionate liability; • The amount paid in settlement; • A recognition that a settlor should pay less in settlement than the settlor would pay if found liable after a trial. • The allocation of the settlement proceeds among plaintiffs; • The financial conditions and insurance policy limits of the settling defendants; and • Evidence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. The most important factor is the settling party’s proportionate liability. (<i>Mattco Forge, Inc. v. Arthur Young & Co.</i> (1995) 38 Cal. App. 4th 1337, 1350.) A court must consider not only the settlor’s potential liability to the plaintiff, but also its proportionate share of culpability as among all parties alleged to be liable for the same injury. (<i>TSI Seismic Tenant Space, Inc. v. Superior Court</i> (2007) 149 Cal. App. 4th 159, 166.) Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement to the settlor may not be the amount paid to the plaintiff, but rather the value of the shield against such indemnity claims. (<i>Id.</i> at 166-67; see also <i>Far West Fin. Corp. v. D & S Co.</i> (1988) 46 Cal.3d 796, 816, fn. 16 [“Another key factor is the settling tortfeasor’s potential liability for indemnity to joint tortfeasors.”].) “The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (<i>Tech-Bilt</i>, supra, 38 Cal.3d at pp. 499–500.) The trial court’s section 877.6 determination “should be made on the basis of experience rather than speculation.” (<i>Id.</i> at 500.) “ ‘When testing the good faith of a settlement figure, a court may enlist the guidance of the judge’s personal experience and of experts in the field.’ ” (<i>Ibid.</i>) “[A] determination as to whether a settlement is in good faith must be left to the discretion of the trial court.” (<i>Id.</i> at 502.) Here, Defendant Hutchinson Logistics & Consulting, LLC
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	seeks a determination that a settlement with Plaintiff of a dismissal with prejudice in exchange for HLC waiving its costs, attorney’s fees, and expenses, is in good faith. Defendant Cal Coast Packing & Crating, Inc. has filed a motion to contest the finding of a good faith settlement. 1. Rough Approximation of Liability/Settlor’s Proportionate Liability and Settlement Amount This subrogation action arises out of alleged damages sustained to a Boom Supersonic aviation component (“Subject Property”) while being transported in November 2022 by Plaintiff Nationwide Insurance Company’s (“Plaintiff” or “Nationwide”) insured, Harrison Farms Trucking, LLC (“Harrison”), from Irvine, California to Centennial, Colorado. Hutchinson Logistics & Consulting, LLC (“HLC”) acted as a freight broker, and entered into a Broker/Carrier Agreement with Harrison so that HLC could arrange for the transportation of the Subject Property. Pursuant to the Broker/Carrier Agreement between HLC and Harrison, HLC’s responsibilities were limited to arranging for the transportation of a shipper’s freight with [Harrison], and not actually performing the transportation, services, possessing the freight, or controlling the means or methods of the transportation.” Harrison also agreed to “indemnify and hold harmless [HLC] for any cargo loss or damage, or for delay in the delivery of a shipper’s freight, or for any actual or consequential damages resulting therefrom.” Plaintiff’s damages in this case are no more than \$95,000. The value of HLC’s waiver of costs, attorney’s fees and expenses is no less than approximately \$9,801.11. When determining good faith based on “proportionate share” of liability, courts examine whether the settlement is grossly disproportionate to what a reasonable person at the time of the settlement would estimate the settlor’s liability to be. (<i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1262.) HLC contends it was the broker who contracted with Harrison to transport the Subject Property. HLC was not involved with packing, loading, and securing the Subject Property. Therefore, HLC’s actions could not have caused or contributed to the damage
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	sustained to the Subject Property. Moreover, Harrison is obligated to defend and indemnify HLC from any claims involving the Subject Property. Thus, HLC’s liability with respect to Plaintiff’s claim is zero. In opposition, Cal Coast disputes that HLC had no involvement in the packaging, loading or physical transportation of the Subject Property. As evidence of this, Cal Coast submits emails between it and HLC regarding the shipping of the Subject Property wherein HLC discusses the shrink wrapping of the Subject Property. Cal Coast contends its only obligation was to shrink wrap the shipment subject to HLC’s term. Cal Coast had no contract or direction from either the owner of the Subject Property or the transportation company that actually shipped the Subject Property. Thus, HLC’s proposed settlement that HLC pay nothing is not within the ballpark of the HLC proportionate liability. Whereas Cal Coast contends that its liability is zero. HLC contends that the emails merely demonstrate it acted as an intermediary coordinating transportation related logistics between the various parties. HLC did not physically package the cargo, load the cargo, secure the cargo, transport the cargo or exercise control over the manner in which Cal Coast performed its packaging services. Mario Loughry’s (CEO of Cal Coast) declaration confirms Cal Coast’s role was to shrink wrap the Subject Property. While Cal Coast disputes HLC’s liability, it has offered no evidence establishing that the settlement is unreasonable in relation to HLC’s liability. Cal Coast does not dispute Harrison’s duty to indemnify HLC. Nor does Cal-Coast offer any evidence establishing what HLC’s proportionate share of liability should be. 2. Allocation of Settlement Proceeds Plaintiff is the only plaintiff in this action. 3. Settlor Should Pay Less in Settlement Than if Liability Imposed Following a Trial Although HLC denies any liability for Plaintiff’s damages in this action, it is understood by Plaintiff and HLC that this Settlement Agreement is made at this stage of the litigation to buy HLC’s peace, and said parties recognize that such settlement may be less than a possible trial result.
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		4. Financial Condition and Insurance Policy Limits HLC is in stable financial condition, and its insurance carrier has insurance in an amount apparently sufficient to satisfy the probable amount of a judgment on Plaintiff's claims. 5. No Evidence of Fraud or Collusion HLC's settlement with Plaintiff is the result of an arms-length discussion of the risks of protracted litigation, including an assessment of liability. Cal Coast does not allege any evidence of fraud or collusion. In sum, the court finds that HLC has presented substantial evidence of its potential liability and that the settlement represents a fair proportion of its liability. For these reasons, the motion for determination of a good faith settlement is GRANTED. Clerk to give notice.
9	Pate vs. Lane 2021-01231702	Motion for Summary Judgment and/or Adjudication No tentative. Before ruling on the motion, the court makes the following disclosure: DISCLOSURE The parties are advised that California Code of Judicial Ethics, Canon 3E(2)(a) requires that in all trial court proceedings, a judge shall disclose on the record information that is reasonably relevant to the question of disqualification under Code of Civil Procedure, section 170.1, even if the judge believes there is no actual basis for disqualification. Although Judge Lo firmly believes he can be impartial in all matters before the court, the Court discloses the following: Judge Lo's son is a neurosurgical resident-physician at UCI Medical Center.
10	Power vs. Deerfield Apartments, LLC 2025-01473139	Motion to Compel Arbitration Tentative ruling was issued on 5/7/26. Case Management Conference is VACATED. This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.)

		<i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 5, 2027 at 8:30 a.m. in Department C44.</i> Defendants shall give notice.
11	Solorzano vs. Origence Lending, Inc. 2026-01554439	Motion to Compel Arbitration Defendants CU Direct Corporation dba Origence, erroneously sued as Origence Lending, Inc., and Roselie Javier’s motion to compel plaintiff Liseth Solorzano to arbitrate her claims, is GRANTED. (9 U.S.C, § 2; Code Civ. Proc., § 1281.2 [authorizing motion].) Plaintiff Liseth Solorzano is ordered to arbitrate her claims in this action against moving parties, pursuant to the parties’ arbitration agreement. Moving parties have met their initial burden of presenting evidence of an executed arbitration agreement requiring arbitration of plaintiff’s claims in this action. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [moving party’s initial burden to present evidence of arbitration agreement]; Levine Decl. in support of motion, ¶¶ 5-15, Ex. C thereto [DocuSign “Certificate of Completion”], Ex D thereto, §§ 5, 7 [“Arbitration Policy & Agreement” requiring both parties to arbitrate “all Claims between Employee and the Company that the Employee may have against the Company, or the Company may have against the Employee that arise prior to or at any time after the Effective Date of this Agreement,” including “[w]rongful or retaliatory discharge, demotion,” “[d]iscrimination, harassment or retaliation based on sex, gender, gender identity, race, sexual orientation, marital status, religion, national origin, veteran status, age, pregnancy, leaves of absence, handicap, genetic condition, a physical or mental disability, whistleblowing, or any other characteristic or activity protected by applicable law,” claims under “the California Fair Employment and Housing Act,” “[t]ortious conduct of any type,” and “[a]ny other statutory or common law claims under any law of the United States, or any State, municipality, local agency or any other government entity, including any applicable laws relating to discrimination in employment and/or wage and hour laws, and/or, violations providing for injunctive, declaratory, and/or other equitable relief”].) While plaintiff contends she did not “knowingly” agree to arbitrate employment claims, she does not dispute executing the Arbitration Policy & Agreement, or that it applies to her claims in this action.

		(<i>Bolanos v. Khalatian</i> (1991) 231 Cal.App.3d 1586, 1590 [“When a person with the capacity of reading and understanding an instrument signs it, he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground he failed to read it before signing it”]; <i>Randas v. YMCA of Metropolitan Los Angeles</i> (1993) 17 Cal.App.4th 158, 163 [“It is well established, in the absence of fraud, overreaching or excusable neglect, that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it;” internal citations omitted]; see also <i>Madden v. Kaiser Foundation Hospitals, Inc.</i> (1976) 17 Cal.3d 699, 710 [“general rule that one who assents to a contract is bound by its provisions and cannot complain of unfamiliarity with the language of the instrument”]; <i>Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & Mitchell, LLP</i> (2013) 219 Cal.App.4th 1299, 1309 [generally, a party has “no duty to point out the existence of the arbitration provision or to explain its significance, and their failure to do so does not invalidate the arbitration contract”].) Plaintiff also contends that the Arbitration Policy & Agreement here is procedurally and substantively unconscionable. (<i>Armendariz v. Foundation Health Psychcare Services</i> (2000) 24 Cal.4th 83, 114 [in order for a court to exercise its discretion to refuse to enforce a contract under the doctrine of unconscionability, both procedural unconscionability and substantive unconscionability must be present].) Plaintiff has shown some procedural unconscionability, in that she avers that she “understood this document to be a routine, company-required document that I was expected to complete during my employment,” that it was “mandatory and standard,” and that “failing to complete it quickly would delay or jeopardize my employment, and my eligibility for the holiday bonus,” as well as the fact that the arbitration rules were not attached. (Solorzano Decl., ¶¶ 4, 5, 7; <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 127–128 [standardized arbitration agreement as condition of employment]; <i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 244–245 [collecting cases and noting that “the failure to provide a copy of the governing rules ‘contributes to oppression because the employee ‘is forced to go to another source to find out the full import of what he or she is about to sign and must go to that effort prior to signing;’” citations omitted].) But plaintiff has not shown substantive unconscionability, as also required. (<i>Armendariz v. Foundation Health Psychcare Services, supra</i> at 114.) The court finds that any discovery limitations are insufficient to establish substantive unconscionability, given that
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		the arbitrator also has discretion to allow additional discovery. (Levine Decl., Ex. D, § 13(f); see also <i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal.5th 478, 506 [“Allowing the arbitrator to deviate from agreed-upon default discovery limits ensures that neither party will be unfairly hampered in pursuing a statutory claim based on circumstances that arise postformation”]; <i>Armendariz v. Foundation Health Psychcare Services, supra</i> at 105–106 [parties to an arbitration agreement are “permitted to agree to something less than the full panoply of discovery provided” in the California Arbitration Act]; <i>Martinez v. Master Protection Corp.</i> (2004) 118 Cal.App.4th 107, 118 [“discovery limitations are an integral part of the arbitration process ... [a]dequate discovery is not synonymous with unfettered discovery”]; <i>Dotson v. Amgen, Inc.</i> (2010) 181 Cal.App.4th 975, 983 [“arbitration is meant to be a streamlined procedure ... [l]imitations on discovery, including the number of depositions, is one of the ways streamlining is achieved”].) Nor has plaintiff shown that the Arbitration Policy & Agreement permits defendants to recover attorney fees otherwise unavailable by law. (Cal. Gov’t Code, § 12965, subd. (c)(6) [governing recovery of attorney fees in FEHA actions; Ex. D to Levine Decl., § 13(h); [with exceptions not relevant here, “each Party shall pay its own attorneys’ fees and costs ... <u>[i]f however, any Party prevails on a statutory claim that affords the prevailing party attorneys’ fees and costs</u>, or if there is a written agreement providing for attorneys’ fees and costs, the arbitrator may award reasonable fees and costs to the prevailing party <u>in accordance with applicable law</u>,” emphasis added].) Defendants’ evidentiary objection nos. 9 and 11 to the Solorzano Decl. are SUSTAINED (relevance) and otherwise OVERRULED. This action is STAYED pending completion of arbitration. (Code Civ. Proc., § 1281.4.) <i>An Alternative Dispute Resolution (ADR) Review hearing is scheduled for February 26, 2027 at 8:30 a.m. in Department C44.</i> Moving parties shall give notice.
12	Weaver vs. Chauhan 2025-01500925	Demurrer to Amended Complaint No tentative. The court will address proof of service issues before ruling on the merits of the demurrer.